

The general demurrer to the second, third, and fourth causes of action based on Civil Code section 8500 barring the action is OVERRULED.

Section 8500's exclusivity provision governs rights with respect to any fund for payment of construction costs. The demurrer analysis turns on whether each cause of action is, in substance, a claim to the construction fund itself or a claim for personal liability arising from the lender's independent wrongful conduct.

Section 8500 does not bar Boyer's second cause of action. The fraudulent inducement cause of action is grounded in MDL's alleged independent wrongful conduct and not that of administering the construction loan fund. Boyer alleges MDL itself made oral and written representations to pay, that the representations were false and made without intent to perform, that Boyer relied on the representations, that due to the justifiable reliance Boyer was damaged, and that Boyer prays for judgment against MDL itself.

As to the third cause of action, the comparative indemnity and declaratory relief claim by Boyer against MDL seeks a declaration that MDL must bear a proportionate share of the Boyer's liability to the subcontractors. This is not, on its face, a claim to the construction fund. It is a claim for MDL's personal liability arising from MDL's alleged role in causing the subcontractor payment disputes. Any resulting judgment would be satisfied by MDL itself.

The fourth cause of action is similarly not barred by section 8500. By incorporating the prior allegations, and reading the complaint as a whole, Boyer has sufficiently alleged that MDL's enrichment flows not from the administration of the construction fund, but from MDL's alleged fraudulent inducement of Boyer's performance. As the second cause of action is not barred by section 8500, neither is the fourth cause of action.

The general demurrer to the second cause of action for failure to state facts sufficient to state a cause of action is SUSTAINED WITH LEAVE TO AMEND.

Although the first amended third party complaint is sufficient to withstand a challenge based on Civil Code section 8500, the second cause of action does not state facts sufficient to state a cause of action.

As Boyer has stated that the defect can be cured on amendment and has provided information that they can allege the who, what, when, where, and how that is missing, leave to amend is granted.

Boyer is to file an amended third party complaint within ten (10) days of this court's order.

Motion to Compel Further Responses and for Monetary Sanctions

Previously continued from June 26, 2026, to allow for further meet and confer.

Per the Declaration of Robert Meehan, filed July 10, 2026, the parties were able to meet and confer and resolve many of the disputed responses.

The following discovery remains in dispute:

- 1. FI-G Nos. 12.2 and 12.3;**
- 2. FI-E Nos. 215.1 and 215.2; and**
- 3. RFP No. 77.**

(Meehan Decl. ¶ 5, 3:8-12.)

Form Interrogatories – General, Set One

The court's ruling on the request to compel further responses to Form Interrogatories – General, Set One, No. 12.2 is RESERVED, subject to an in camera hearing.

Here there is a dispute as to whether the potential list of witnesses is finite or numerous thus indicating attorney work product. Plaintiff claims that the list is finite and provides the names of five (5) individuals they believe might be witnesses. Defendant claims that the list is numerous and if the information is provided it would reveal counsel's impressions, conclusion, opinions, or legal research or theories. To support this argument Defendant states that there are numerous employees, managers, or other witnesses that may have provided information.

Defendant has made a preliminary showing that the answering the interrogatory would reveal counsel's impressions, conclusion, opinions, or legal research or theories. (See *Coito v. Superior Court* (2012) 54 Cal.4th 480, 502 [“Upon such a showing, the trial court should then determine, by making an in camera inspection if necessary, whether absolute or qualified work product protection applies to the material in dispute.”])

In this instance, to resolve the issue regarding the work product privilege an in camera inspection is required.

The issue before the court is how many witnesses existed and were disclosed, how many were interviewed, and whether the fact less than all were interviewed constitutes work product. Thus, the issue to be determined in camera is the number that could be interviewed and the exercise of counsel's strategic decisions in selecting those to interview versus those that were not interviewed for reasons such as convenience or unavailability. If the selection was for a strategic reason that would be work product.

The in camera hearing is scheduled for July 24, 2026, at 9:00 a.m. in Courtroom 8.

The court's ruling on the request to compel further responses to Form Interrogatories – General, Set One, No. 12.3 is RESERVED, subject to an in camera hearing.

The issue before the court is how many witnesses existed and were disclosed, the exercise of counsel's strategic decisions in identifying and selecting those from which to obtain statements, how many provided statements, and if the statements were obtained as a result of the attorney's efforts or whether the statements were independently prepared by the witness and subsequently obtained by the attorney. If the selection was for a strategic reason and the statement was obtained by the attorney that would be work product.

The in camera hearing is scheduled for July 24, 2026, at 9:00 a.m. in Courtroom 8.

Form Interrogatories – Employment, Set One

The court's ruling on the request to compel further responses to Form Interrogatories – Employment, Set One, No. 215.1 is RESERVED, subject to an in camera hearing.

The issue before the court is how many witnesses existed and were disclosed, how many were interviewed, and whether the fact less than all were interviewed constitutes work product. Thus, the issue to be determined in camera is the number that could be interviewed and the exercise of counsel's strategic decisions in selecting those to interview versus those that were not interviewed for such things as convenience or unavailability. If the selection was for a strategic reason that would be work product.

The in camera hearing is scheduled for July 24, 2026, at 9:00 a.m. in Courtroom 8.

The court's ruling on the request to compel further responses to Form Interrogatories – Employment, Set One, No. 215.2 is RESERVED, subject to an in camera hearing.

The issue before the court is how many witnesses existed and were disclosed, the exercise of counsel's strategic decisions in identifying and selecting those from which to obtain statements, how many provided statements, and if the statements were obtained as a result of the attorney's efforts or whether the statements were independently prepared by the witness and subsequently obtained by the attorney. If the selection was for a strategic reason and the statement was obtained by the attorney that would be work product.

The in camera hearing is scheduled for July 24, 2026, at 9:00 a.m. in Courtroom 8.

Request for Production of Documents, Set One

The motion to compel a further response to Request for Production of Documents, Set One, No. 77, is DENIED WITHOUT PREJUDICE.

Rule of Court, rule 3.1345(c)(4) states that the separate statement shall include "If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it."

Here, the requested documents are based on a special definition for the term "DOCUMENT RELATED." The separate statement does not include the special definition. That definition is required for this court to determine if Defendant's objections should be sustained or overruled. Nor does Plaintiff state whether Defendant provided a privilege

log for the objections based on privilege for which the claim of privilege can be initially evaluated.

As Defendant was justified in opposing Plaintiff's motion, the request for monetary sanctions is DENIED.

26CV-03525 Bradley Robinson vs David Ruggiero

Order to Show Cause Re: Restraining Order

Appearance required.
